

Carrell, Bethany

From: Carrell, Bethany
Sent: Thursday, June 29, 2023 1:14 PM
To: dharrell@couchaggregates.com
Cc: David A. Harrell; hari.parasu@nwfwater.com
Subject: June 14, 2023 Inspection Report
Attachments: June14,2023-MossyHead_InspectionReport-284094.pdf

Good afternoon,

The Florida Department of Environmental Protection's Mining and Mitigation Program conducted an inspection of the Mossy Head Sand Mine (MMR_284094) on June 14, 2023. Please see attached copy of the inspection report.

Thank you,



Bethany Carrell

Florida Department of Environmental Protection
Mining and Mitigation Program

Environmental Specialist III

Bethany.Carrell@FloridaDEP.gov

Office: 850-245-8359



FLORIDA DEPARTMENT OF Environmental Protection

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2600 Blair Stone Road
Tallahassee, FL 32399-2400

Ron DeSantis
Governor

Jeanette Nuñez
Lt. Governor

Shawn Hamilton
Secretary

June 29, 2023

Dolomite, Inc.

C/o David Sloan

P.O. Box 938

Marianna, FL 32447

Email: dolomite.inc@gmail.com

RE: Rocky Creek Mine DEP File No. MMR_215039 – Site Inspection Report

Dear Representative,

The Department of Environmental Protection (Department) staff conducted an inspection of the above referenced site. Inspection details such as time, attendees, and findings can be found on the following page. The Inspection Report has been drafted from the Field Inspection Form that was filled out in the field at the time of inspection.

If you have any questions or comments, please contact Bethany Carrell of the Mining and Mitigation Program at 850-245-8359 or via email at Bethany.Carrell@FloridaDEP.gov.

Sincerely,

A handwritten signature in dark ink, appearing to be "B" followed by a long, sweeping horizontal line.

Bethany Carrell
Environmental Specialist III
Mining and Mitigation Program
Florida Department of Environmental Protection

CC: Kathy Sloan (Dolomite, Inc.), sloank@hotmail.com
David Thompson (Dolomite, Inc.), dthompson1947@hotmail.com

Project: Rocky Creek Mine
Date: May 16, 2023
Attendees: Bethany Carrell and Christine Keenan – DEP;
David Thompson – Dolomite
Location: Jackson County

Department Staff conducted an annual inspection of the subject property on May 16, 2023. The following notes were formulated based on observations made during the referenced inspection.

BACKGROUND:

The Department received a Notice of Existing Mine on June 2, 1988 and a Conceptual Reclamation Plan on September 10, 1990, which was updated on September 15, 1992. This notice indicated mining and reclamation would be completed in 2018. The Department performed an inspection of the site on October 27, 2015 and instructed Dolomite to submit and updated reclamation plan. During subsequent inspections by the Department on August 8, 2017 and August 29, 2018, the Department informed Dolomite that they needed to submit an updated Conceptual Reclamation Plan as well as apply for an Environmental Resource Permit (ERP) due to expansion of the mine. A pre-application meeting was held with Dolomite on February 22, 2018. The mine discharges to the Chipola River under the current Industrial Wastewater Facility Permit (IW) FL0101192-008-IW3S, which was issued on November 27, 2018. This IW permit expires on November 26, 2023.

INSPECTION OBSERVATIONS:

- The mine appeared to be active at the time of inspection.
- Dolomite stated that the Department had instructed Dolomite to leave a 125-foot buffer along the Chipola River for their 1991 Reclamation Plan and that a surveyor had marked the line.
- The Department observed preparations for blasting happening at Points 2 and 9 and removal of overburden at Points 2 and 10.
- Dolomite stated they wet mine with a dragline about 40 feet deep and about 3-3.5 acres are mined each year.
- Dolomite stated they are not dewatering the pit, but they do discharge to the Chipola River (Permit No.: FL0101192-008-IW3S).
- The Department observed old equipment and debris throughout the property, including plastic, tires, concrete, metal pipes, trailer, machinery, etc.
- The mine does not appear to be utilizing BMPs such as silt fence to contain stormwater or material on site. The Department observed several areas where the perimeter dirt road was graded away from the mine and other areas where the road was high in the middle, possibly allowing runoff and sediment to leave the mine site. The Department informed Dolomite that BMPs must be utilized to prevent sediment from leaving the site.
- The Department observed evidence of sediment inadvertently running off the road toward the river at Point 5 due to no BMPs being utilized.
- Dolomite stated overburden is dumped into pond (Point 4) and used to backfill areas and then slope these areas to no greater than 4 feet vertical to 1 foot horizontal when done. Dolomite stated they will begin reclamation when mining is complete.

- The Department observed the outfall to the Chipola River at Point 7 and connection to the pit at Point 8.
- Dolomite stated that the stockpile of red sand at Point 12 is sold off.
- Dolomite stated that area south of Points 14 and 15 has been refilled. The Department observed cogon grass (*Imperata cylindrica*) in these areas.
- Dolomite stated that tailings are moved to the area west of Point 16 where it is allowed to dry, and it is then used for aglime (agricultural limestone).
- The Department explained the Environmental Resource Permit (ERP), Chapter 62-330, Florida Administrative Code (F.A.C.) The ERP became effective in Northwest Florida on October 1, 2007. For existing mines, the rules provide an exemption for the operation and routine custodial maintenance of activities legally in existence, provided the work is conducted in a manner that does not cause violations of water quality standards. However, this exemption does not apply to any mine that expands beyond the limits of land that has been prepared for mining prior to October 1, 2007. Land prepared for mining includes lands intended for immediate mining and may involve preparation such as land clearing, root raking, removal of topsoil, etc.
- The Department instructed Dolomite to apply for an ERP and to update their Conceptual Reclamation Plan (CRP) Limestone Form 2 (62C-36.014 F.A.C. Form 2) was provided at the time of inspection.
- The Department has not received an annual mining report since 2018. The Department reminded Dolomite that an annual report must be submitted on or before April 1st of each year. Limestone Form 4 (62C-36.014 F.A.C. Form 4) was provided at the time of inspection.

Reclamation:

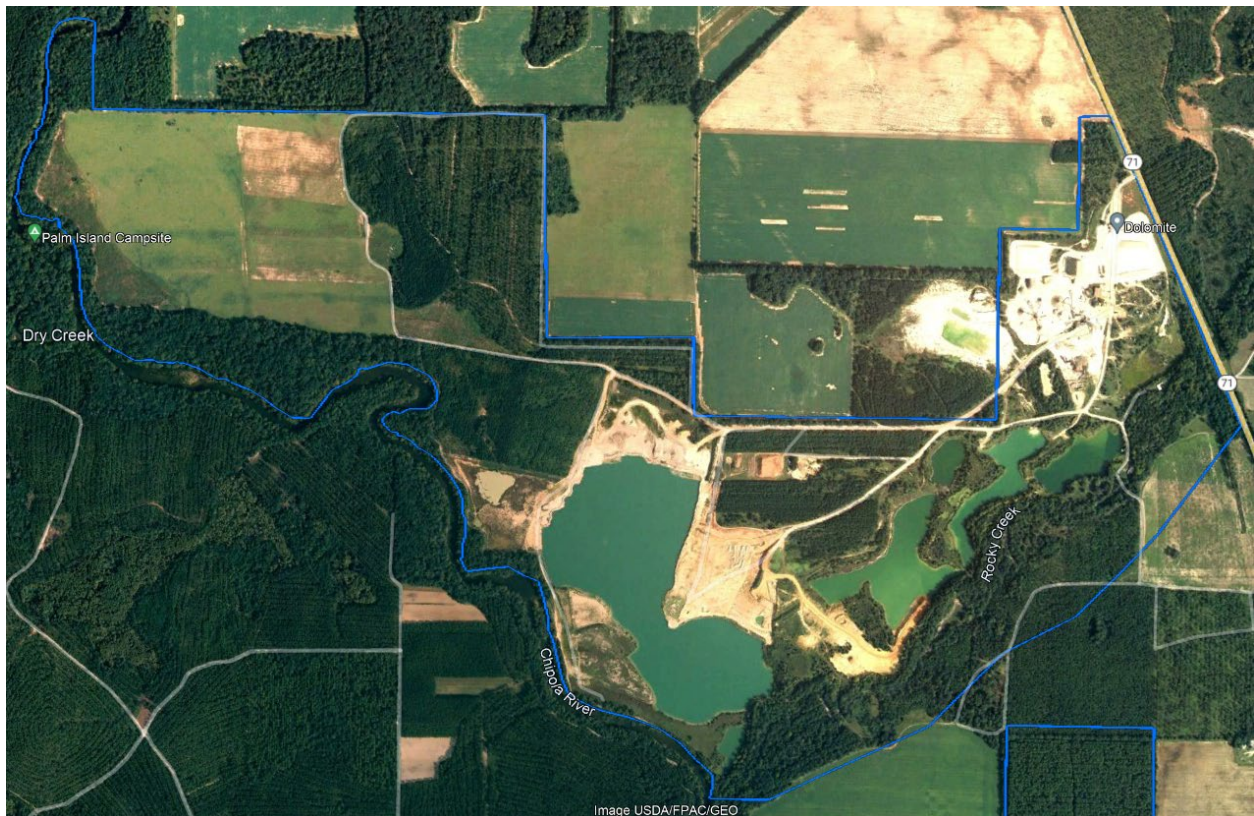
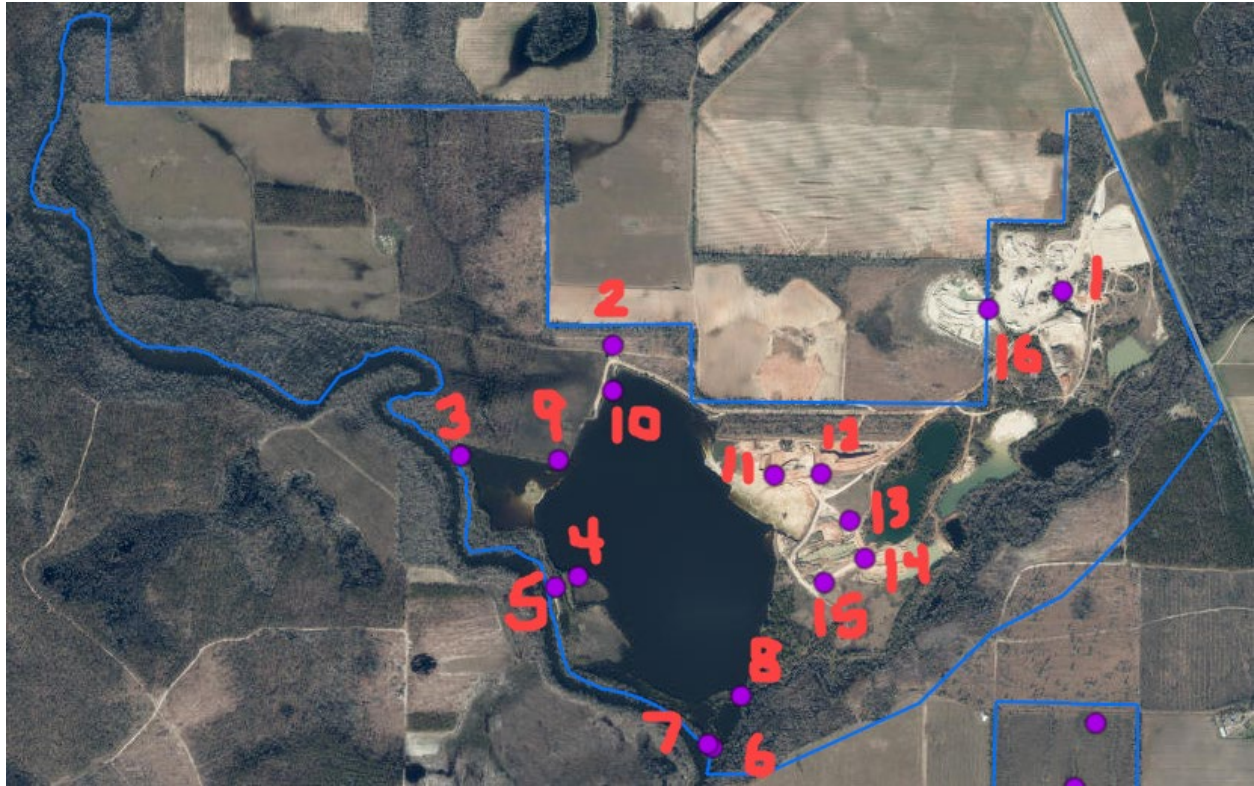
Please note that if mining has been completed in any area, then Reclamation activity through contouring shall begin. Please be aware of the following information from Chapter 62C-36.008 F.A.C.

- (1) *"All reclamation activities shall be initiated at the earliest practicable time."*
- (b) *"...final shorelines and sheer walls shall be initiated and completed no later than one year after the calendar year in which the length and final location of shoreline or dry sheer wall was established and other mining operations have ceased in such area...."*
- (c) *"Revegetation activities shall be initiated as soon as practical and completed no later than one year after the calendar year in which the final contours are established in an area and revegetation activities would not interfere with mining operations."*
- (d) *Reclamation activities through revegetation shall be completed within three years of the final cessation of mining operations at the mine."*

Please contact the Department to schedule a pre-application meeting regarding these inspection observations within 30 days of the receipt of this report. Please note that failure to obtain a required ERP could result in fines and enforcement action taken by the Department.

Rocky Creek Mine

May 16, 2023 Inspection Photos



Google Earth Aerial: 5/7/2007

Point 1: Facing northwest



Facing southwest



Point 2: Facing



Facing southwest



Point 3: Facing south



Facing northeast



Point 4: Facing north



Facing southeast



Facing southwest



Point 5: Facing east



Facing north



Facing southeast



Point 6: Facing northeast



Point 7: Facing east



Facing west



Point 8: Facing northeast



Facing southwest



Point 11: Facing east



Facing west



Point 13: Facing north



Facing west



Point 15: Facing east



Facing south



Point 16: Facing west





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FIELD INSPECTION REPORT

Mining and Mitigation Program

Ph: (850) 245-8616

Note to Inspectors: One inspection report must be filled for each mine per day in the field.

MINE NAME: Rocky Creek Mine - Dolomite, Inc (MMR-215039)

LOCATION (TOWN): Marianna, Jackson County

DEP INSPECTOR: Bethany Carrell DATE OF INSPECTION: 5/16/23
(signature)

OTHER ATTENDEES: Christine Keenan (DEP), David Thompson
(Dolomite, Inc.)

MINE REPRESENTATIVE: David Thompson
(signature)

Conservation Easement Area ☐

Permitting Area ☐

INSPECTION NOTES: Actively sorting Will keep moving N
3-3.5 acres per year. Plan is to mine the entire site.
Point 2: getting ready for blasting & removing overburden
125 ft setback from riverbank for reclamation plan ~1991
- Surveyor marked the line
Dragline wet ~40 ft deep, not dewatering. Started discharging.
No bmps observed. Road is high in middle in many areas &
Overburden is dumped into pond. | graded away from mine
Reclaim when mining is done. | in others.
Point 5 - sediment running off road toward river
backfilling w/ the overburden (points 2⁴ & 3) then will slope when done.
Observed old rusty pipe (large) near point 7 & 6?
Point 8 - connection from pit to outfall

FL0101192-006-IW35/WR



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INSPECTION NOTES (continued:)

Stock pile of red sand near point 10^{@ Point 12} is sold.
points 14¹⁵ refilled to S. Observed cogen grass, no bms
- tires, plastic, concrete, debris, ^{metal} near point 12 along
pit to E / Old machinery / trailer farther S on road
plastic pipes, tire, concrete
Point 16 - tailings area. Stated once it dries it is used
for ag lime